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Judgment Sheet

IN THE LAHORE HIGH COURT,
Bahawalpur Bench, Bahawalpur
(JUDICIAL DEPARTMENT)

W.P.No.6561 of 2024

Zain ul Abiden

Vs.

Province of the Punjab etc.

JUDGMENT

Date of Hearing	16.04.2025
Petitioner by:	M/s Muhammad Yaseen Ataal and Shoaib Iqbal, Advocates.
Respondents by:	Rai Mazhar Hussain Kharal, Assistant Advocate General for respondent No.1. Mr. Murtaza Nawaz Joiya, Law Officer for respondents No.3 and 4.

SYED AHSAN RAZA KAZMI, J. Through the instant Writ Petition, the petitioner has challenged the action of the respondents whereby the respondents No.3 and 4 have withhold the LL.B degree of the petitioner on the direction of respondent No.2 alleging that the petitioner obtained scholarship from respondent No.2 deceitfully and he is, therefore, liable to return the same.

2. The learned counsel for the petitioner contends that the petitioner secured admission in LL.B (M) and being eligible student, applied for the scholarship under Ehsaas Scholarship Program by annexing the monthly salary statement of his father, a government employee; that petitioner successfully completed the LL.B degree and thereafter upon applying for clearance certificate, the respondents refused to issue the same and issued a recovery letter; that the scholarship program of the petitioner was rightly issued to him as the salary of his father was less than 45,000/- at the time of application; that it was the duty of the respondents to check/scrutinize the information provided by each student and the petitioner did not conceal any information nor give false information at the time of submitting his Forms for scholarship /

admission; that he wants to get admission in forthcoming LL.M program but the respondents are not issuing him the degree as well as transcript without any plausible cause and are demanding a deposit of Rs.163,000/- of scholarship received by the petitioner, before issuing the degree and the transcript.

3. Conversely, the respondents submitted their joint comments asserting that based on false facts and figures furnished by the petitioner, his scholarship was canceled under the Deed of Agreement. A recovery challan of scholarship was issued under Clause vi of the Deed of Agreement and the said challan was uploaded on the university portal and his clearance was withheld.

4. Arguments heard and record perused.

5. The petitioner seeks twofold reliefs: Firstly, direction to respondent No. 4 to issue his clearance certificate, transcript and LL.B degree etc. Secondly, the restraint against the respondents from recovering the scholarship amount and quashing the impugned Challan amounting to Rs.163,300/.

6. Regarding the first prayer which relates to respondents No.3 and 4, the Legal Adviser of the University stated that the petitioner's degree was withheld solely on the instructions of respondent No.2 and not due to any outstanding amount payable to the university or any other reason. It is clear that the respondents were merely following the directions of respondent No. 2. Suffice it to say, the impugned action of the University lacks legal basis and is deemed illegal, as the petitioner has not violated any university laws, and the university is not privy to the agreement between the petitioner and respondent No.2.

7. Regarding the second prayer, which relates to the recovery of amount claimed by respondent No.2 which was paid to respondent No.3 and 4 in view of the scholarship for the degree of the petitioner. The respondents' case is that they announced a scholarship for the deserving students belonging to financially constrained background with specific

conditions, the pivotal one being the income of such a father/guardian that must be less than or equal to 45,000/-. The petitioner applied for the scholarship by mentioning that his father was earning 12,000/- being a laborer. The petitioner not only tendered an affidavit in this regard but also signed deed of agreement with respondents and undertook to fulfil all the conditions mentioned therein.

8. The respondents' claim to have awarded a scholarship to the petitioner based on submitted documents, but scrutiny revealed that the petitioner failed to provide a pay slip from his father/guardian as required. Despite requests, the petitioner did not provide the pay slip, leading the respondent to instruct the University to withhold the degree since the scholarship is government-funded and payable only to the eligible students.

9. The petitioner argues that all the required documents submitted by the petitioner were deemed eligible for the scholarship, and it is the duty of respondents to scrutinize the information. He claims that no information was concealed or falsified. The petitioner asserts that it is his right to receive the degree and the respondent cannot demand the recovery.

10. In view of the rival claims, it becomes necessary to examine the Deed of Agreement the most crucial document to determine which party is at fault and to ascertain their respective obligations and liabilities. It will be advantageous to reproduce conditions of deed of agreement hereunder:-

- i) The payment admissible under the scholarship program shall be made subject to the complete adherence to all rules and regulations governing the scholarship program as well as satisfactory performance in the authorized studies.
- ii) The student shall not change the specified course of studies nor register himself/herself for any other course or program/University/Institute without prior approval of the HEC.
- iii) The student shall not extend the specified period of studies without prior approval of the HEC. In case of selection at any other scholarship scheme the student will immediately report the same at the university.

- iv) The Parents/Guardian of the student are unable to financially support his/her education.
- v) The Scholarship will be terminable in the following cases:
 - a). If the student fails to maintain class attendance of 75%.
 - b). If the student is involved in malicious/undesirable activities.
 - c). If the student fails to obey or act in accordance with HEC's order directing him/her, he/she will be liable to action under the acts/rules in force in the country.
 - d). If the student is punished because of his involvement in violation of the university rules, damage to institute property, misbehavior with staff or colleagues or any other disciplinary action.
 - e). If the information provided by the student is found incorrect at any time during his study period.
 - f). If the student fails to maintain academic standards set forth by the university/HEC.
- vi) In case, the awardee misrepresented /hide facts about the financial income to the scholarship award committee, simultaneously receive scholarship funding from other source too, HEC reserves the right to recover all the payment received and or a penalty equal to total scholarship amount from the Scholars/Guarantor/University.
- vii) Information from my academic history may be released to HEC and the scholarship donor(s), HEC and the University, reserve the right to use my name, story, and picture for printed and video materials, reports, and press releases, without compensation but prior approval.

A plain reading of conditions of the deed indicates that respondent No.2 is empowered to cancel the petitioner's scholarship if incorrect pieces of information are provided. Furthermore, the deed stipulates that respondent No.2 cannot only cancel the scholarship but also initiate recovery proceedings for the granted scholarship amount.

11. The records submitted by the respondent with their reply reveal discrepancies in the petitioner's application. Initially, the petitioner declared his father, a laborer, earning Rs. 12,000/- per month. Later, he stated that he is unable to submit his father's pension slip as his father deserted the family six years ago and left supporting him financially, while his brother and sister are currently covering his expenses. The petitioner has not even annexed his father's pension slip with this petition as well. Due to these inconsistencies, the Court finds that

resolving the dispute requires recording of evidence, which is not possible within its constitutional jurisdiction.

12. The learned counsel for the petitioner has placed reliance upon a previous judgment of this Court passed in W.P.No.7938/2022, however, the factual matrix of the cited case is distinguishable. In that case, the petitioner had annexed all relevant documents with the application and contended that despite the pay-slip reflecting a slightly higher gross income, his father's income-after statutory tax deductions-fell below the prescribed threshold.

13. There is no cavil to the proposition that respondent No.2 may recover amounts obtained through alleged misrepresentation, but the method adopted by respondent No.2 lacks legal basis. Neither the learned Assistant Advocate General nor the University's Legal Adviser could cite any law allowing the University to recover the outstanding amount of respondent No.2, especially when the University (respondent No.3 and 4) is not the privy of the above-mentioned Deed of Agreement.

14. It is trite law that a statutory authority / organization or an autonomous body must ensure its actions aligned with the principles of justice and settled law, avoiding the measures that contradict these norms. The Hon'ble Supreme Court of Pakistan in an identical matter in case-law titled as "Higher Education Commission through Project Manager versus Sajid Anwar and others" (2012 SCMR 186) held that **the competent authority, who awarded scholarship to respondents for higher education outside the country subject to the conditions laid down therein, at the best it could have enforced the agreement or bond but had no jurisdiction to deny fundamental right of the respondents enshrined in Articles 14 and 15 of the Constitution. However, if at all they had any grievance, as it has been observed hereinabove, they could have, before Court of law, enforced the agreement of the bond or claim any relief under the civil litigation.**

15. The writ petition stands ***disposed of*** with a direction to respondent Nos. 3 and 4 / University authorities to forthwith issue the petitioner's degree, clearance certificate, and transcript. Respondent No.2 is restrained from effecting recovery of the paid scholarship amount without first adopting an appropriate legal remedy for the purpose. Needless to mention, the respondents shall remain at liberty to file a civil suit or to initiate appropriate civil proceedings for the recovery of the alleged arrears, in accordance with law.

Before parting with this judgment, the Court deems it appropriate to record its observation regarding a list comprising 47 students from Islamia University Bahawalpur who were awarded Ehsaas Scholarships, as reflected in the report submitted by the respondents. It was observed, however, none of these students actually satisfied the prescribed eligibility criteria. The scholarships, intended to assist students facing genuine financial hardships, were erroneously granted to ineligible recipients. Such misallocation defeats the very object of the scheme and constitutes a breach of fundamental legal principles. In order to rectify this irregularity, the respondents are directed to place a copy of this judgment before the Chairman, Higher Education Commission, to ensure that future awards under the Ehsaas Scholarship Program or alike schemes are strictly confined to deserving and genuinely needy students in order to meet the very purpose of such funds.

(Syed Ahsan Raza Kazmi)
Judge

Approve for Reporting.

Judge